

Hello. My name is Jay Freeman, and I am the developer of Cydia, popularly known as "an alternative to the App Store for jailbroken iOS devices (iPhone, iPad, and iPod Touch)". I have been involved in the 1201 exemption process since 2009, when the EFF filed for an exemption on the work in which I am embedded. I attended the hearings in 2012, and in 2015 I was on the panel for multiple requests. (If there will be hearings for this study, I would like to be involved.)

Specifically, what I provide are the tools required to "add features" to existing software. Rather than having to wait for mobile phone operating system vendors (such as Apple or Google) or application developers (such as Facebook or Twitter) to decide that your need is a high enough priority to add the functionality you might want in your own device, I provide the tools that allow third-party developers to modify the software and add whatever you might need themselves.

These tools do not involve copying the original software. These tool work in a similar way to the Game Genie, which provided this functionality on the Nintendo gaming platform. This device sat "between" a software cartridge and the game console, allowing the code as read by the system to be modified; but at no point was there a modified copy of the whole program in a form that could be used as a derived work. This device ended up in litigation, and was established as not creating a derived work in the case law (with a fallback position that it would still be fair use).

https://en.wikipedia.org/wiki/Lewis_Galoob_Toys,_Inc._v._Nintendo_of_America,_Inc.

I believe that some of my colleagues in this area will be making much better arguments about the issue with transient exemptions, so I'm going to limit my comments to aspects of 1201 that I believe others are less likely to cover: the anti-trafficking clause and the requirements of filing.

The reality is that modifying an iPhone to strip away the software encryption locks that prevent this kind of functionality is extremely complex. One key developer has described it as "you have to send the following 10 pages of numbers, followed by, *exactly* 23 milliseconds later, the new following 10 pages of numbers". This is not something that anyone can do by themselves: they need a tool developed by an expert to make these modifications, for whatever needed purpose.

And there are many purposes: in a world where increasingly more devices involve encryption-based software locks to verify their software, we are rapidly running into the situation where all of the use cases we wish to provide exemptions for (blind people reading books using a third-party screenreader, deaf people using timecode information to synchronize closed captioning with the playback of a DVD, educators being able to use snippets of content during lectures) require these extremely complex gymnastics (often using an identical set of general tools).

This means that the anti-trafficking clause becomes extremely onerous, as exemptions for those who distribute the tools required to allow users to make these difficult changes are every bit as important as the exemptions for the users themselves. The existence of this anti-trafficking clause thereby undermines the entire purpose of the 1201 exemption process existing at all.

The other issue that I would like to point to is that the requirement in the exemption submission process that the digital lock being defeated be exactly described means that it is easy to claim that exemption petitions are incomplete or that the resulting exemptions don't apply to a product from a specific company because the specific mechanism or arbitrary layering of encryption techniques being used to sign the firmware is different. It needs to be sufficient to simply talk in higher-level abstractions: it should be a use case that drives an exemption, not the technology.